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Indigenous Mechanisms of Inter-Ethnic Conflict Management and Resolution prior to Colonialism between the Turkana and Pokot Communities, Kenya (1850-1963)

By

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Abstract

The purpose of this study was to examine the indigenous and non-indigenous mechanisms for managing and resolving inter-ethnic conflict between the Turkana and Pokot from 1850-2017. The study specifically sought to assess the indigenous mechanism of inter-ethnic conflict management and resolution in the pre-colonial era, 1850 to 1963. The study was grounded on the protracted social conflict theory by Edward Azar. The primary data used in the study included archival documents and oral information obtained from the field research, while the secondary data were accessed from various libraries and documentation centres. The study's target population included the Turkana people of the Kainuk area and the Pokot people from the Sarmach area in Pokot Central. The study was highly qualitative and it adopted the non-probability sampling techniques, mainly purposive sampling and snowballing. The data collection instruments were question guides, document analysis guides, and a focused group discussion guide. Data analysis was done qualitatively, and the information was presented descriptively and narratively using themes. The study found out that the pre-colonial mechanisms of conflict management and resolution were appropriately geared toward solving conflict for the sustenance of the community and they included use of reciprocity, age sets, jokes among others. This study recommended increased use of alternative conflict resolution strategies such as the use of community courts and peace ambassadors.

Key Words: Conflict, Indigenous, Mechanisms, Inter-Ethnic, Resolution Pre-Colonial, Turkana, Pokot, Kenya

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Introduction

Conflicts continue to have a deep and traumatic impact on the communities caught up in them worldwide. Studies on conflict and conflict resolution analyze the different kinds of conflicts that occur, their consequences and strategies to resolve them. There have been various prominent recent examples that include the genocide in Rwanda, ethnic cleansing in Bosnia, and repression in East Timor; repression in Kosovo; the establishment and enforcement of no-fly zones in Iraq; and the use of economic sanctions against South Africa and Yugoslavia. Similarly, there have been conflicts in Bosnia, Albania and Somalia (Ratner, 1998). More recent studies indicate the rise of transnational and intra-national conflicts. Conflict has been one of the devastating phenomena in Africa in the last three decades, with Arid and Semi-Arid Lands (ASALs) such as Turkana and Pokot being the most vulnerable grounds (Hussein, 1998). Wolff (2006) notes that it is relatively easy for anyone to determine which conflict is ethnic across the Globe. The ethnic conflict between Pokot Central and Turkana south inhabitants has been increasing recently (Daily Nation, 25th November 2013). The border region between the Turkana and Pokot has experienced ethnic violence, resulting in deaths, injuries and displacement of people from their homes due to fear of frequent attacks. The major causes of these conflicts include boundaries and resources. Some of these resources are the Turkwel power plant, Akwulo water resources, grazing fields and salt licks.

The sporadic violence experienced in the region indicated that enough had not been done to manage this conflict which has claimed the lives of thousands of people in the two counties. (Schilling et al., 2012). According to Behnke (2008), livestock possession has played multiple social, economic and religious roles in pastoral livelihoods, such as providing a regular source of food in the form of milk, meat and blood for household members, cash income to pay for cereals, education, health care and other services. He notes that livestock is also essential in pastoral communities for dowry payment, compensation of injured parties during raids, a symbol of prosperity and prestige, store of wealth and security against drought, disease and other calamities. Livestock is, therefore, a basic form of pastoral capital, besides functioning as a means of production, transport and transfer of food and wealth. Therefore, due to the livestock livelihood, there is competition among the Pokot and Turkana communities to own the livestock, which leads to conflicts among them.

In an attempt to resolve conflict, several strategies have been adopted across the world. Some of the chief methods of conflict management were the indigenous methods of conflict management such as the use of the council of elders, economic means such as sharing the resources, threat or use of force. The modern state or coalitions of states tried to prevent or mitigate violence by using deterrence, coercive diplomacy, defensive alliances, economic sanctions and other tangible non-military threats and punishments, such as the withdrawal of foreign aid; and direct military force to establish demilitarized zones continue to be relevant in modern era of conflict. Military organizations are now increasingly being used in new ways and for new conflict resolution purposes. Armed force is infrequently used in direct interventions, even in Europe such as in Bosnia and the Russian interventions in Chechnya,

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Tajikistan and Ukraine. Peacekeeping missions also physically separate adversaries to prevent further violence, but also provide humanitarian relief, resettle refugees, and rebuild infrastructure (Doyle, 1997).

In the local context, the application of both indigenous and modern methods of conflict resolution have identified as sustaining a climate of peace. Eaton (2008) explains how peace meetings have become almost as much a part of people's lives in the North Rift because of the incessant cattle raids. (Eaton 2008b) further looks at the presence of Non-Governmental Organizations (NGOs) and their role in the area, focusing on peace meetings that have been viewed as having no genuine impact and sometimes causing even more tension and violence. Their interventions lack cohesion, coordination, and networking because most of these organizations compete with one another over funding from different agencies; hence they don't focus more on finding a lasting solution to these conflicts. More pragmatically, the organizations behind these meetings have realized that their service targets are impossible to achieve while the insecurity continues (Eaton, 2008).

The discovery of 'gun power' has seen the region selectively advance on the recent gun varieties in the market, which has enabled the citizens in these areas to access more sophisticated weapons similar to the ones held by state security forces, making the conflict more pronounced (Bollig & Osterle, 2007). Since the 1990s, researchers have emphasized the changing nature of cattle rustling (Hendrickson et al., 1998). They attribute it to the increased proliferation of sophisticated automatic rifles such as AK 47 (McCabe, 2004).

Statement of the Problem

Pokot Central and Turkana South are among the places found in the Arid and Semi-Arid areas in Kenya. Conflicts in these two areas have been increasing since before independence. The government, NGOs, individuals, community elders among other stakeholders have been trying to manage and resolve these conflicts for many years. Many causes have been attributed to these conflicts among them struggle for access and ownership of scarce resources such as water and pasture. Some scholars have indicated that the differences in the cultures of the two communities is among the causes. The fact that both communities survive through nomadic pastoralism where mobility is key has also been a cause of the conflicts.

As a result of these conflicts, many lives have been lost, many people have been displaced and maimed over the years. The two areas have not been able to develop because of lack of security making investors afraid of the place. The areas also suffer a harsh terrain that is characterized by unforgiving temperatures. The conditions make it difficult to sustain the main economic activity of cattle rearing causing a rise in banditry and cattle rustling in the areas.

Indigenous methods of conflict resolution have been subjected to criticism by both colonial and post-colonial state apparatus due to the cultural differences and lack of enforcing mechanism. The mechanism of conflict management and resolution between the Pokot and Turkana communities before the colonial era requires a critical examination in order to advise on how to deal with the problem in current times.

Research Objective

To assess the effectiveness of indigenous mechanism of inter-ethnic conflict management and resolution prior to colonialism.

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Literature Review

According to Krause et al., (2008), global perspective conservative estimates indicate that at least 740,000 men, women, youth and children die globally each year due to armed violence, most of them in low- and medium-income settings. Most of these deaths occur in situations other than war, though armed conflicts continue to generate high casualties. The author indicated that preventing and reducing these deaths and related sufferings became increasingly important on the international agenda. Most of the conflicts have been found among the pastoral communities of Africa and other third world countries. According to Azarya et al. (1996), pastoralism refers to an economy based on raising livestock; sedentary or nomadic groups could undertake this. Pastoralists include those who earn part of their living from livestock and livestock products. They include those still connected to pastoralist culture, even if livestock does not provide their main source of income (Humanitarian policy group, 2009).

Pastoralism in all its forms is more than just a mode of production. It involves a specific mode of social organisation and cultural patterns and practices (Markakis, 2004). Nomadic, on the other hand, refers to the extent of spatial movement of pastoralists; therefore, pastoral production is conceptually different from the extent of residential mobility. This article looks at the Pokot and Turkana communities who are both pastoralists and nomads. Mbennah (2001) and Ntabona (2001) narrated that in western colonial rule, traditional African societies had institutions, customary practices and rituals that guaranteed social harmony between the various components of society. However, the colonial rule, various post-independence governments and churches suppressed or distorted the African institution, customary laws and rituals. They contended that African communities had several ways of resolving conflicts using traditional institutions, which embodied moral authority. Kagabo (2001) credited Bashingantahe for its role in seeking peace during a crisis and partly because of its potential to contribute to Burundi's peace process.

This article argues that before colonialism in Kenya, the Turkana and the Pokot communities had methods of resolving conflicts which may be important to the communities even today. According to Baxter and Hogg (1990), in Galaty, the North Rift region of Kenya, a rapid advance in the commoditization of the range land significantly weakened the economic power of majorities. This process saw large acreages of pasture land fall under the plough, especially in the better-watered areas, denying herders some of their valued grazing areas. This commoditization highly polarized the affected regions socially, politically, and economically.

Nevertheless, as the communities became wretched of the earth through warfare, poverty was seen alongside comparative prosperity. The authors observed that in Kenya, grazing lands were so crucial that several people grouped themselves to protect the fields against invasion. The authors took an empirical approach to inter-ethnic conflict resolution which is the interest of this article. Mwaniki et al. (2007) argued that the primary sources of conflicts, especially in the North Rift region, included resource scarcity at 29.8%, the inadequacy of socio-economic investment in the region at 29%, political incitement at 19.9%, and gun culture at 11.8%, ethnic animosity and others at 6.9%. Mwaniki et al. (2007) took an empirical approach to conflict management, and the study was contextualized in the borders of West Pokot and Turkana Counties. Mwaniki et al. (2007) applied field research to the study. Mwaniki et al. (2007) study was relevant in terms of empirical data providing a building block for societal growth and advancement. However, Mwaniki et al. (2007) study should have remembered to critically show that the resources may trigger and prolong conflicts, as in the

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case between the Turkana and Pokot.

According to Mkutu et al. (2007a), livestock raiding often involved manageable small-scale violence as well as theft of the livestock or replacement of animals lost during periods of droughts or as a result of diseases. In the process of raiding, loss of human lives was rare, and when this occurred in Turkana and Pokot, customs dictated that compensation in the form of livestock was to be paid to the victims or their families. Mkutu et al. (2007a:48) described raiding as a maladaptive cultural institution in which the value of cattle was placed higher than human beings. Mkutu et al. (2007) took an empirical approach to conflict resolution, and the study was contextualised in Kenya, the borders of Turkana and Marile communities. Mkutu et al. (2007) applied descriptive research, and the study was relevant in that the empirical data used proved a theory and informed action. The data contributed to developing knowledge in the field of study. However, Mkutu et al. (2007) did not determine whether the above arguments led to this conflict that has been protracted for years.

Mkutu et al. (2008) and Mwangi (2006) state that pastoralist conflicts revolve around livestock. The conflicts are predominantly about livestock and related productive assets: water, land and pasture. These resources closely tie conflicts to the violence and theft of livestock, referred to as raiding, which is both contributing factor and articulation of conflicts. Mkutu et al. (2008) argued that raiding leads to distrust between communities which is a pre-requisite for conflicts, and supports the idea that communities at times use raiding to articulate their hostility toward enemy communities. Mkutu et al. (2008) took an empirical approach to conflict resolution, and the study was contextualized in Turkana, North West Kenya. Mkutu et al. (2008) applied field research to the study. The study was relevant in terms of how empirical data uncovers the deeper roots of conflicts in Turkana and Pokot communities and applies what can be learned. However, little evidence exists on the reduction of armed violence and prevention interventions between the Pokot and Turkana communities.

Pike et al. (2010) explain that apart from the physical impacts of conflicts on humans, trauma is another impact. That the people who survive after the raids suffer from trauma as they see their loved ones die. Pastoral conflicts have led to a loss of livestock among the people of Turkana South Sub-County. As a result of raids, many people in Turkana South and Pokot West Sub-County have abandoned their settlement though this is not a common phenomenon. In some instances, the raiders also steal the crops grown, or at times they burn the farms of the victim community. There are occasions whereby the Pokot have destroyed the beehives of the people of Turkana South Sub-County. Pike et al. (2010) study took an empirical approach to conflict resolution and was contextualized in Kenya's borders of Pokot and Turkana communities. The researcher applied a co-relational research approach. The study was relevant in terms of how empirical data initiated a very preliminary reflection on the underlying trends of Pokot and Turkana violence conflicts. However, Pike et al. (2010) needed to critically analyse the impact of small arms as in the case of cross-border areas of Kenya and Uganda.

Theoretical Framework

The Edward Azar's (1990) theory of Protracted Social Conflict (PSC) provides an analytical attempt to comprehensively analyze and explained the protracted nature of intra-state conflicts (Ramsbotham, 2005). Azar developed a framework that analyzed the conflicts, which he called Protracted Social Conflict (PSC) and defined it as: "the prolonged and often violent struggle by communal groups for such basic needs as, resources, security, recognition and acceptance, fair access to political institutions and economic participation (Azar, 1990). Azar (1990) argued that the denial of basic human needs to a large portion of the population-

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initiated instances of protracted social violence. That there are four pre-conditions that were predominant sources of PSC. These were communal content, deprivation of human needs, governance and the state's role, and international linkages.

According to Azar (1990), communal contentment in PSC situations was communal identity based on race, religion, and ethnic group or cultural ties. This was important because these identities were used to solicit basic needs. In many multi-ethnic societies, states emerged, dominated by a single communal group. This communal group or coalition of groups ignored the needs of other communal groups, which strained the social fabric and finally lead to fragmentation and protracted social conflict (Azar, 1990).

Azar (1990) argued that monopolization of power by dominant individuals and groups and the limited access to other groups precipitated a “crisis of legitimacy” (Azar, 1990). Governance and State's role are other sources of conflict, especially where the state is characterized by incompetent, parochial, fragile, and authoritarian governments that fail to satisfy basic human needs. The last argument Azar (1990) put forward is the international linkages influenced by outside connections both economically and politically within the broader global community.

Azar's (1990) PSC theory is relevant to this study because the border between Turkana and Pokot exhibits this conflict. The Turkana and Pokot have suffered from many challenges among them, changes in ecological conditions that exacerbated raids, livelihoods and the cultural nature of raids to commercialization.

This leads to conflict (Azar, 1990). Deprivation of needs of some communities by dominant communities leads to increased grievances and conflict (Azar, 1990). This explanation resonates with what the Turkana and the Pokot are undergoing. Both the Turkana and the Pokot communities relied on their warriors for the protection and identity of their communities from external aggression and to meet their security needs because of the failure of the state to provide the basic need for the communities. However, Azar's (1990) PSC theory fails to explicate the how the post-colonial state integrates both indigenous and modern methods of conflict management and resolution strategies to manage the conflict.

Research Methodology

This was a historical study that applied a case study research design with an in-depth investigation. This design was appropriate because it facilitated adequate data collection using an in-depth interviews, focused group discussions, and observation guide. The study's target population comprised residents of the Pokot Central, Sarmach division and the Turkana of Kainuk division in Turkana South of the former Rift valley province. These are people who are usually directly affected by the pastoral conflicts in the area.

The current population of Kainuk is 10,500 while of Samarch is 11350 (Census GoK, 2019). From this targeted population the study sampled respondents from the categories of the local chiefs, NGOs, clan elders, religious leaders, youths, herdsman and kraal leaders living within this region in particular. The profile of the target population in terms of age, education, gender, religion among other characteristics was taken into considerations. The main researcher employed non-probability sampling techniques, including purposive and snowballing. In the case of purposive sampling, the researcher chose the respondents depending on their knowledge and know-how in relation to the subject under study. The researcher went directly to respondents who were knowledgeable on the indigenous and non-indigenous mechanisms for managing and resolving conflict among the Pokot and Turkana. The researcher used four main instruments for data collection in this study. They included

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Focused Group Discussion Guide, Interview Guide, Observation Guide and Document analysis guide.

Findings of the Study

The findings on the indigenous conflict resolution mechanisms used in Turkana South and Pokot Central before colonialism are discussed below. Given the African style of living, certain mechanisms had to be employed in resolving conflicts. Africans used most of the mechanisms popularly known as homegrown conflict management and resolution strategies. According to Mwangi (2013), the kinship system believed that relatives or kin never fight as “blood is thicker than water.” Through kinship ties and group identities, people could make statements such as “we are all part of the same village, we are all of the same ethnic group, and we are all Africans”. These relations were geared towards preventing conflict and creating or restoring relationships that could have been damaged by conflict. That is why whenever there is a conflict between different parties or communities, the first thing that is done is an attempt to rebuild and foster the broken relationships (Mwangi, 2013).

According to Muigua (2017), fighting among community members was taboo in Pokot and Turkana communities. Respect towards relatives and people from similar tribes was prioritized to avoid the risk of conflicts and war in a community. In the Pokot community, marriage intensified the kinship ties between families and unified different people who would otherwise engage in a conflict if the marriage did not exist. Both communities used negotiation, mediation, and conciliation in resolving their disputes. It could happen informally by people sitting down and agreeing to resolve their differences. They used kinship systems, joking relations, a third-party approach, a consensus approach, *Arekapel* (age-sets) social groups, women/men elder and blood brotherhood.

The clan institution was pivotal in the management of conflicts traditionally. The Turkana terminology for a clan is *ateker*, and for the Pokot is *Hor*. The Turkana and the Pokot consider clanship one of the most important socio-political organizations that knit together distant relatives, facilitating a feeling of rendering mutual support in all important matters in the clan’s interest. Clan members were guided by specific rules and regulations to avoid conflicts. For instance, members of the same clan were not permitted to inter-marry. This was related to the conflict because, as clan members, they were bound together and would not go to war against each other.

Clan membership served as both protection and insurance for clan members, and it centred on the struggle for recognition of social, political, economic and cultural rights and status (Metz, 1962). In the Pokot and Turkana contexts, people lived in kinship/clan localities, and each locality had its separate community or village elders. Each clan structure was divided into sub-clans and sub-sub-clans, which did not always get along with each other even though they were part of the same clan. Clans were not necessarily equal in terms of the number of their members (Elmi, 1989). Each clan had a community or traditional clan elder whose primary job was to work as an intermediary and a peacemaker in his clan and with other clans. It is important to note that the Turkana and Pokot share clans with a linguistic difference in the prefix *ngi* for Turkana and *Chep* for the Pokot. The clan that cut across are (Turkana) *Ngi-Tengor*, *Ngi-Kureru*, *Chep-Tengor* and *Chep-Kureru*. These clans became the basis for fostering peace because of shared blood relations (Barret, 1997; Korobo, 2021).

Reciprocity was the other principle that created an ideal environment for conflict resolution. A mutual exchange of privileges, goods, favours, and obligations, among others, existed among African communities, thus fostering peaceful coexistence and consequently

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eliminating the likelihood of wars and conflicts. If a community was facing a calamity, say famine or death of livestock, other communities would aid that particular community (Wiggins, 1996). Reciprocity thus nurtured a culture of communal life, which fostered relationships between Turkana and Pokot. Reciprocity emphasized sharing and sustained a sense of collective security through a social set-up supporting egalitarian social living. Reciprocity enhanced harmonious relationships by putting communal interests above individual pursuits. Through this principle, individual norms were transformed into social welfare security schemes. Thus, it embedded a sense of justice and fairness as mutual trust became an overriding value. (Antonioni, 1998, Moberg, 2001)

The principle of reciprocal obligations was firmly anchored in the Turkana-Pokot way of life. The Turkana-Pokot believed that if you assist the neighbour in domestic chores, gardening or during times of adversity, that neighbour would do the same for you in future. Those who do not reciprocate acts of neighbourliness are looked down upon and cannot be assisted when faced with difficulties (Areman, 2021). Anchored on this principle, conflict resolution mechanisms in the traditional African society had to be responsive to conflicts by mending broken or damaged relationships to restore justice, restore conflicting parties into the community and continue with the spirit of togetherness. (Nakain, 2021).

Both communities shared water points like the Turkwel River because it embodied common humanity. During the pre-colonial period, the Turkwel River boasted gigantic trees, dense forests, and bushes with tall grass; hence, the Pokot and Turkana cooperated for mutual dependency and survival. They settled along the river banks and supplemented their diet and water needs by fishing and digging water holes along the river banks during drier seasons to water their animals and for human consumption. Women from both communities collected fruits, vegetables, and wild berries to supplement a domestic food supply. Fishing, cultivation and pastoral activities facilitated trade in grains, iron wares, tobacco and fish in a symbiotic manner. Both communities were therefore compelled to live harmoniously because their lives depended on the river (Gulliver, 1966: Lamphear, 1976).

The age-sets was important in conflict management and resolution. Turkana society is divided into alternating generation sets, Erisait (leopard) and emurut (stone) (Lamphear, 1989). Men are also subdivided into age groups (Gulliver, 1958; Lamphear, 1976b). Age groups are a key organizing institution for men in contemporary Turkana. Senior age groups have authority over juniors, and age mates behave as equals. Patrilineal descent groups form clans. Clan members are geographically dispersed and are less important than age-based groupings when organizing raids (Gulliver, 1958; Lamphear, 1989).

Turkana society is politically un-centralized. Settlements have prominent warriors and diviners who act as leaders, but leaders are not vested with coercive authority. Socially, Pokot men were divided into various groupings; *Karachona* or boys, *Muren* or circumcised men and *Poi* or older men. Boys, once circumcised, would join an age set. The age grade was another common institution for conflict resolution. It is a structure of social organization among many communities in Kenya. Belonging to a particular age group demanded observance of the rules, duties and rights arising from such membership. In Pokot and Turkana, age-mates respected one another and observed the rules of that *Karachona*, and as such, conflicts among age-mates were unheard of, as they were considered taboo. Parents of the age-mates were expected to be peace-makers whenever conflicts arose among their children or relatives (Bollig, 1990).

Among the Pokot and Turkana, the age set was a ritual of passage that doubled as a form of socio-political organization of the community. People in a given age set, like

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(Muren) regarded themselves as brothers and sisters, respectively and were expected to behave in a particular way in the community. The age set in Turkana and Pokot regulated its members and, where necessary and punished troublemakers. In this way, age sets in these two communities were essential in preventing conflict-causing conduct in the traditional communities (Almagor & Baxter, 1977).

The age-set system was an influential conflict management institution among the Turkana and Pokot. Among the Turkana- Pokot, the panel to mediate the matter comprised mainly leaders of the offender's age set, who were chosen in their youth and led that particular age group for their lifetime. The aggrieved party would lodge a complaint with the offender's age group leader, who would then call upon the offender to appear before his/her peers. This was effective because, as age sets, they easily understood each other and forgave each other.

In the age groups, the teachings of social obligations were re-emphasized, thus binding those of the same status in ties of closest loyalty and devotion. When a man of the same age group injured another, it was considered a serious offence. As such, belonging to an age group demanded observance of the various communities' rules, duties and rights. Because members of the age group respected one another and observed the rules, conflicts among age-group members were rare and were considered taboo. Parents of the age-mates were expected to be peace-makers whenever conflicts arose among their children or relatives. For the Pokot, Moran's who were young men mainly served as community defenders. Being a nomadic community, they were trained to protect their animals, their families and their communities in general in case of an attack. The belief in respect and living in harmony with morans in Pokot was essential in minimizing the risk of conflicts amongst themselves (KNA/DC/BAR/6/1 Law and Order Suk Disturbance).

The council of elders of the two communities instructed the age sets, which were used as warriors to fight the enemy during the conflict between them. Turkana and Pokot age sets played a significant role in conflict resolution since, during the war, they could interact. They could accommodate each other's views and opinions through that interaction, leading to negotiation and solving the conflict (Gulliver, 1958). The age system as a method of conflict resolution has been criticized because of the following reasons. The age set system was more militaristic and inefficient in the resolution of complex disputes. The morans lacked required technical knowledge or specialized skills of diplomacy and at times became authoritarian and usurped the powers of the elders. The elders also lacked adequate compliance and enforcement mechanism to ensure the morans obeyed their sanctions (Gulliver, 1958; Areman, O.I. 2021).

Joking relations is a typical African social phenomenon employed in Turkana and Pokot communities to avoid conflicts through verbal exchanges, attitudes, and behaviours, sometimes with "violence" and "aggressiveness", but always with a joking tone. In Turkana and Pokot communities, they were a daily practice, a kind of "agreement" between the numerous two communities that aimed at banning anger and hatred, which were the sources of conflicts. Sometimes, joking relationships were established after social conflicts or wars to say "no more" war. Resolving conflicts could thus invoke these ties to show that there were established relations and hence no need for war.

According to Muigua (2017), joking relation was a typical African social phenomenon employed to avoid conflicts between neighbouring ethnic groups through verbal exchanges, attitudes and behaviours. Turkana uses mock fights (*etaparath*) and mock dance (*etum*) to inculcate a sense of societal harmony (*enikitene*) and unity, thus preventing individuals from developing anti-social behaviours. If one developed an unbecoming behaviour, emissaries were sent to the concerned families to seek ways of rectifying them (Adhiambo, 2014).

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Sometimes the Pokot referred to the Turkana as “overgrown babies” because they failed to act their age and take peace matters seriously. There were times when the Pokot referred to the Turkana as “bad friends and good enemies.” This meant that in the beginning, they were friends who turned into enemies, but whenever there was a need for reconciliation, both sides heeded each other (Holtzman, 2017).

Therefore, joking relations effectively settled ideological differences between these two communities, which could not be resolved using bargaining skills. Joking relations would successfully mitigate and resolve such conflicts since they are premised on forgiveness and tolerance. They also give the mediator power, influence or control over the conflicting parties and ensure disputants observe decorum given their relations to the same community. This implies that in the African context, the third party had more resources to use in resolving the conflict. Joking relations worked well with Pokot and Turkana because it brought peace for a short period.

Mediators could rely heavily on social ties and persuasion in their work. They use local values and social institutions to legitimize their interventions in disputes and increase their leverage over the disputant’s communities. For example, a mediator could use a mediation quote in applying relations jokingly.

”It is obligatory for me to reconcile you and bring you back together. I appeal to you please consider our relationship (joking partner) and agree on one thing” (Nakain O.I. 2021). It is important to note that joking relations as a strategy to resolve the conflict was more expansive than the Pokot and Turkana. It was widespread across African pre-colonial societies. Joking bonds are customary ties that link various groups and individuals. In the Gambia, joking relations existed between the members of different ethnic groups and clans, kinfolks such as cousins, grandparents and grandchildren, and between the peoples of various regions. Moreover, The Mandinka, Jola, Fulbe, Wolof, Serahule, Serer, and Bambara were linked through multiple cross-cutting ties, including joking kinship (Arno, 1990). These relationships included mutual obligations and were most commonly manifested in semi-ritualized mockery or teasing. Joking partners would typically tease each other about their big bellies and for the love of eating, but the ribbing could also be extended to other topics.

Customs dictated that partners interact in ways that would ordinarily be frowned upon or cause offence. Joking kin were not supposed to become angry with each other. Also, offending or harming joking partners was prohibited. There are different types of joking relationships. Among the Mandinka, the trade language of the southwest, joking bonds are commonly referred to as *sanawuya* or *dangkuto*. *Sanawuya* can refer specifically to joking ties between cousins but is also used as a general name for joking relationships (Arno, 1990). *Dangkuto* generally connotes a more serious bond and is usually used to refer to inter-group links such as those between patri-clans and ethnic groups. *Dangkuto* ties generally involve more mutual obligations than *sanawuya* and a more significant threat of spiritual sanctions if one offends or injures one’s joking partner. According to Diallo, oral histories in western Burkina Faso depict joking links as the product of a “blood pact” made after a conflict between “two legendary persons” (Diallo, 2002; Arno, 1990).

Another mechanism used in Turkana and Pokot was the consensus approach, where resolutions were attained based on consensus rather than a winner-takes-all approach. Consensual outcomes were highly regarded as they created confidence, and parties had autonomy over the process. Thus, the elders’ decision was effective, durable and long-lasting. An agreement reached through consensus could be communicated to the whole community and affirmed as a social contract ritually.

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The Pokot and Turkana used the consensus approach mostly when one community raided another. This was done to pass the news of the satisfactory conclusion of the conflict resolution process. In implementing the agreement, both parties and the community followed up to confirm compliance. This was much embraced by the Pokot-Turkana communities during the conflicts to ensure peace between the two communities (Lamphear, 1989).



Plate 1: A Consensus meeting between the Pokot and Turkana at Turkwel Gorge

Source: *Picture taken by Researcher on 5th April, 2020*

Consensual outcomes were highly regarded as they created confidence, and parties had autonomy over the process. Thus, the elders' decision was practical, durable and long-lasting. This was done to pass the news of the satisfactory conclusion of the conflict resolution process (Muigua, 2017). Regarding implementing the agreement, the parties and the entire community followed up to confirm compliance with the agreement.

Among the Turkana, usually public opinion was highly respected, and members of the public were not shut out from informal gatherings. However, they observed that the elders could not operate and resolve conflicts within these structural limits of customary conflict. Conflict management was time-consuming and did encourage broad discussion of aspects unrelated to the central system. Every crime has a predetermined compensation which can also be negotiated depending on the social and economic circumstances of the culprit (Adhiambo, 2014). The fine and compensation are broken down to their equivalent in number and type of animals. For instance, murder (akibut) was a serious crime in the community, and the fine imposed depended on the sex and marital status of the victim. For a man, camels, or cows to be paid was thirty. For spinsters, sixty animals and a married woman, the victim is required to pay forty animals. If the victim failed to pay the fine, he or she would be killed by a bereaved family member as revenge. A cleansing ritual (Akibel Akoit) was performed to cleanse the

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murderer of the bloodshed and protect him from the spirits of the dead (Adhiambo, 2014).

Turkana and Pokot used negotiations and mediation as a process in conflict management whereby they sat by themselves and talked it out voluntarily and mapped out the future of their relationship (Mwagiru, 2006). It could be a dyadic process where in the case of the Pokot and Turkana, the two communities negotiate the settlement or resolution, or a triadic process that involves a third party such as the State or some other body in the negotiation (Bercovitch, 1984).

It is important to note that it was more of negotiated mediation, where forgiveness often entailed one or more disputants dropping their demands and agreeing to reconcile. It was based on the principle that “if you forgive now, then when you (or your kinsperson, associate, or animal) make a similar mistake, people will be willing to forgive you” (Holtzman, 2017). A belief in divine rewards for forbearance is also common in the region. This was also witnessed among the African communities in Gambia in the pre-colonial era, where terms such as *sabar* in Arabic meant patience or forgiveness, leading to a greater need for affective factors and social ties that can encourage the parties to buy into the reconciliation attempt (Aron, 1990).

The negotiation mechanism was used in conflict management during the pre-colonial era in the Pokot and Turkana conflict. Pokot and Turkana elders came together and negotiated for peace. This brought peace among them, and they shared the grazing fields and drinking wells. Therefore, the negotiation approach was a powerful mechanism that united people (Mwagiru, 2006).

Traditional mediation was effective in dealing with interpersonal or inter-community conflicts. This approach has been used at the grassroots level to settle disputes over land, water, grazing land rights, fishing rights, marital problems, inheritance, ownership rights, murder, bride price, cattle raiding, theft, rape, banditry, and inter-ethnic and religious conflicts. It would be correct to argue that the elders in the Turkana and Pokot communities entirely used the mediation approach to operate and resolve conflicts within these structural limits of customary conflict management. The process may be time-consuming and with a broad discussion of aspects that may seem unrelated to the central problem, as the mediator tried to situate the conflict in the disputants’ frame of reference and decide on an appropriate style and format of intervention. Nevertheless, the approach is critical in maintaining peaceful relationships between the Pokot and Turkana communities (Mwagiru, 2006).

With the failure of negotiation, Pokot and Turkana attempted a dyadic approach which involved a third party to help break the deadlock as a mediator. For Doob (1993), mediation involved the efforts of one or more persons to affect one or more other persons when the former, the latter or both perceived a problem requiring a resolution. Mediation involved the “voluntary, informal, non-binding process, undertaken with an external party that fostered the settlement of differences or demand between directly invested parties” (Millar, 1971). The effectiveness of mediation between the Turkana and Pokot largely depended on political context, the mediator’s conflict management competency, prestige, access to resources and ability to act unobtrusively (Bercovitch & Houston, 1996). According to Mulu (2008), “Mediation between the Turkana and Pokot was an act of intervention in a conflict by a third party or an outside power to improve the chances of resolving the conflict. From the above analysis the informality of mediation as a conflict resolution mechanism among the Turkana and Pokot was flexible, expeditious, and speedier, fostering cost-effective conflict resolutions. It was preferred because the outcome of the mediation process was acceptable and durable (Mulu, 2008).

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Turkana and Pokot communities used the Council of Elders, proven more capable of adapting to the socio-economic culture of the regions examined (Beyene, 2017). Indeed, the council of elders bridged the gap between the Pokot and Turkana conflict. As in other African countries, Turkana and Pokot pastoralists are some of the most marginalized groups and live in extreme poverty, often having virtually no say over the changes that impact their lives (Gebresenbet & Kefale, 2012). Turkana and Pokot communities derive their livelihoods mainly from natural resources, which has led to conflict among them. As a result, conflict that causes a loss of human life, loss of livestock, destruction of property and declines in rangeland resources usually happens. The conflicts also affected the development and provision of vital services in pastoral areas by limiting access to rangeland resources. Unless the conflicts are managed wisely, the rangeland resources and pastoral livelihood will deteriorate (Beyene, 2017; Daniel et al., 2017).

In pastoral areas of Turkana and Pokot, the elder's council has been in use since time immemorial and is proven effective in resolving conflicts (Beyene, 2017). Different scholars also reported that managing and resolving conflicts through customary institutions remain widely preferred and utilized in different pastoral areas of the country (Bekele, 2010; Kelemework, 2011; Hundie et al., 2008). Despite the accumulated knowledge of the customary institutions, and the call for Turkana authorities to support the functioning of traditional access options and the successful operation of customary courts (Gemedo et al., 2006; Kinf, 2014; Beyene, 2017), Kokwo or ekuko (councils of elders) in Pokot and Turkana respectively are an elected body of community members who serve a governing function at the local level. The main task of these councils is to arbitrate -through council sittings (Kikao) in a mediation process-- between local disputants in a dispute, frequently fining one or both parties for their failure to keep the integrity of the community.



Plate 2: Council of Elders at Kainuk

Source: Photos were taken by the Researcher on 10th September 2020

Ngimurok refers to medicine men in Turkana who are believed to have supernatural powers and supervise rituals and sacrificial ceremonies in the Turkana community. Ngimurok were consulted before and after a raid and worked closely with kraal leaders. ‘Lapai’ customary law in Pokot and Turkana communities was exercised by the council of elders when a person from the community killed a person from the same community. It was a way of

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compensating the bereaved family by the killer's family or clan and compensation for livestock.

The Pokot referred to the council of elders as *Poy* in the Pokot language. Community elders from the conflicting communities made treaties on peacekeeping. This strategy involved slaughtering a goat and using goat blood for cleansing. Sharing a meal among the warring Turkana community elders signifies peaceful coexistence. However, this strategy primarily dealt with the situation at hand and thus served specific warring situations. (Gulliver, 1958).

The council of elders from both communities engaged in multiple functions to enhance peace and forestall conflict. They engaged in the collection of intelligence information concerning community threats. The casting of sandals by knowledgeable elders from both communities was a common practice. The elders would foretell an impending attack by accurately reading the intestines of slaughtered goats. The community members were then asked to vacate the danger spots with their livestock. Rituals were also performed to protect the community from external attacks. The warriors would be vigilant to spy on the possible enemy attack by looking for suspicious footprints. At times, the elders from Pokot and Turkana would enter into negotiations and convince warriors not to go to raids. The elder from the two communities entered into a peace pact called *Miss*. The peace pact brokered by the elders of the two communities allowed the community to access strategic resources such as pasture water from each other. Both communities donated milk, honey, and bulls that would be slaughtered and shared. Weapons of war, such as spears, allow and shields, were collected, broken and bullied at the ritual site to signify the end of the war and the beginning of peace (Nyanchoga & Nogoto, 2014). The ceremonies were sometimes referred to as cursing ceremonies.



Turkana Cursing Ceremony

Source: Pictures taken by the researcher at Kapedo on 27th September, 2020

Among the Pokot, the ceremonies were necessary for customary conflict resolution due to their longevity and effectiveness. The ceremonies between Pokot and Turkana communities invoke curses in a ritual of burying the hatchet as a last resort in resolving conflicts (Gray, 1981). The Turkana and Pokot regard the burying hatchet ceremony as a non-negotiable step in the process of managing and resolving conflict. They act as a seal and a culmination of the

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indigenous peace processes and agreement. In addition, the interviewees claimed that indigenous rituals marked the closure of conflicts among many African communities. For even the few issues that were brought to the police, society would require a custom ceremony to acknowledge the resolution of the conflict ritualistically.

In a part of the world that was once rife with violent tribal clashes, people revered *muuma/cursing* ceremonies and universally regarded them as a tool to keep communities healthy and just. The present-day communities in Pokot and Turkana still regularly use *Kokwo Poyi sittings* for resolving conflict at the community level, often without success (Thomas, 1992). Despite their importance, the council of elders were inadequate in the protection of rights especially of vulnerable groups like women, children, and minorities. For instance, the fine for killing a woman among the Turkana and Pokot was fifty heads of cattle while for a man it was hundred heads of cattle. The council of elders were also found to be resistant to change which limited the effectiveness of alternative approaches to conflict resolution (Lokol, O.I. 20th July 2022).

The contributions of women to war and peace have long been underestimated for a long time. Women, over the years, often contribute to the outbreak of violence and even hostilities. Time and again, they have been linked to inciting men to defend the interests of their groups, as well as honour and even livelihoods. Women have also been instrumental in preserving order and normalcy during chaotic times. When conflict arises, and men engage in war and are killed, disappear or take refuge outside their country's borders, women are left with the burden of ensuring family livelihood. Women struggle to protect their families health and safety, a task which rests on their ability to cope pragmatically with change and adversity (Gulliver, 1958). It is, therefore, not surprising that women are also a driving force for peace. They are often among the first to call for an end to conflict and to strive for order and rebuilding. In post-war situations, whether in groups or individually, formally or informally, women contribute more than government authorities or international aid to reconciliation, reviving local economies and rebuilding social networks (Gulliver, 1958).

In the post-conflict phase, women played an important role in the peace process and rehabilitation and reintegration phases. Women play a significant role in decision-making in conflict settlement and peace processes. Women can and do act in this phase as negotiators and mediators to encourage dialogue between the parties; by highlighting the needs of women in the demobilisation and reconstruction phase. Women's groups and networks can make an important contribution to a sustainable peace process; former women soldiers, survivors and refugees can foster reconciliation through their experiences. The support of women by other women in psychosocial care, trauma management and reintegration of widows and combatants helps prevent social and economic isolation; during the return or resettlement of internally displaced persons (IDP) or refugees. The women affected can be supported in the settlement choice by activists or women's groups. During the reconstruction of the justice and administrative systems, qualified women can help in the formulation of laws and regulations to ensure gender equality in public life and fair access to economic resources (e.g. land and property rights) (Lamphear, 1976) It is often argued that women are well-positioned to play more critical roles in peacemaking in Turkana-Pokot because of their socially constructed functions as the custodians of family and community values and as nurturers, caregivers and mediators within the family (Vicker, 1993).

Women provided early warning information of impending conflicts too. For instance, while fetching water or collecting firewood, women would come across unfamiliar footprints

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indicating that a group of raiders had passed there. This information was interpreted and shared with the elders for action. For example, women prophets from both the Turkana and Pokot community were renowned for their ability to interpret footprints. They could tell the number of people and where they were coming from. This helped take up measures to avert the conflicts and the associated effects. Secondly, while women slaughtered an animal, they would observe the pattern in the intestines and interpret this information if it indicated an attack (*Arem*) was impending. The community would then take necessary action (Bollig, 1990).

The women also deterred conflicts by discouraging the men from engaging in raids through lamenting, crying and pronouncing curses on anyone who went for the raids against their wishes. Turkana women in Lobeyi -Kotaruk cursed many young men who refused to heed their advice of not engaging in raids. The young men went ahead and raided the Pokot. Since the young men disregarded their mothers' advice, they never returned. They were all killed by the Pokot. This incident served as a deterrence for other young men from engaging in raids. Hence better ethnic relations were maintained with the Pokot resulting in peace (Bercovitch & Houston, 1996).

Women also ensured that they went through a process of transforming conflicts to realize long-term results. In collaboration with other women, Turkana women engaged in activities that would ensure lasting peace. For example, in Turkana South, women like Josephine Akiru collaborated with their Pokot counterparts like Maria Mariach in 1904 to promote peace through approaches such as development, peace dividends and education that ensured that some of the root causes of conflicts were addressed (Lamphear, 1976).

Turkana, women engaged in peace in two ways. One of the approaches was employed through the informal method. Informal meant that some methods they used to build peace were exercised at the household level. It was achieved within the confines of one's home and mostly exercised through the influence of sons and husbands. This influence was achieved through begging, nagging, manipulation, blackmail, scolding and taunting. For example, since women were not allowed to speak at the tree of elders, they would influence their husbands to take a particular position while making decisions.

On the other hand, formal peacebuilding methods mean that women are taking part in influencing their communities towards peace within the public sphere. This was where women left their domestic roles and made their voices heard within the public sphere. Women gathered together and joined with others from the warring groups to speak up for peace and positively influence their society. However, the cultural stereotypes against women worked against them in peace building. (Lamphear, 1976).

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Plate 3: Women of the Clan at Kainuk on a discussion about peace along the border of Pokot & Turkana.

Source: Photos taken by researcher on 10th September, 2020 discussing about peace

Women elders there played a crucial role in resolving conflicts (Muigua, 2017). A critical look at the cultures of most of the other African communities reveals that women's role in conflict management activities was and is still negligible compared to men. For instance, among the Pokot, women act as reference resource people but cannot challenge or influence decisions adopted by the male-dominated council of elders, the Kokwo. Among the Pokot, women are supposed to convey their suggestions through their male relatives. Such information may or may not be conveyed to the council of elders. In the occurrence of intra-ethnic disputes, a reference is immediately made to the council of elders' tree of men' (Ng'ekeliok). Rupensinghe points out that the council comprises clan representatives and all the respected elders in the neighbourhood (adakar) (Adhiambo, 2014).

Women Peace Crusades (*Alokita a Ngaberu*) was a group of women united for the purpose of communicating messages to the community through songs, poems, speeches and dance. The Turkana-Pokot women joined in with women from other communities, such as the Toposa, Didinga, and Nyangatom. The women adopted this method to reach out to the elders and men engaging in raids to stop and embrace peace. This approach of crusades was meant to reach out to the communities living along the borders of Kenya, like Turkana and Pokot. The peace crusades drew women from different areas as well as from different communities that were in conflict. For instance, the Turkana, Toposa, Didinga, and Nyangatom crusade brought together the Turkana, Toposa, Nyangatom and Didinga women.

Through the peace crusades, Turkana and Pokot women like Nasiru, Rebecca Kaporo and Kotome advocated for issues that affected them, such as cattle raids and conflicts. They did this through songs, dance and laments. For example, during this *alokita*, Nasiru spoke out about their experiences as mothers and how their lives had been shuttered by conflicts resulting from raids. She called upon young men to desist from conducting raids or engaging in banditry activities. When the women finished their presentations, the men were moved by the cry of these women, and they committed themselves to pursue peace and reconciliation (Vicker, 1993).

The crusades opened opportunities for dialogue between the communities involved in the peace crusades. For instance, when the Turkana, Toposa, Didinga and Nyangatom were

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going to Toposa land, tensions existed between the Turkana, Toposa and Didinga. Through this *alokita*, the three communities were able to talk and dialogue over the issues of cattle raids that had affected the relationships between the three communities. It helped in restoring and strengthening the inter-ethnic relationships between these communities. The crusade also helped in reaching out to the young men with messages of peace in the grazing fields, which conventional methods such as workshops and conferences could not do. The women called upon the young men to stop raids and embrace other communities through peace—their calls as mothers were headed upon because young men deeply respected their mothers. The women also got an opportunity to call for the return of raided livestock.

They have sung songs to our communities to live together peacefully. Two years ago, they cursed some young Turkana men who attacked a Toposa village and took some cows and goats. During one of the *alokita*'s, when one of the Toposa women, an elderly lady, cried out loudly that she had been left without anything to milk, this aroused emotions among the women as they cried and cursed the young men who conducted such acts. This action moved the elders who committed to following up with the young men and recovering the livestock. Two weeks later, all the livestock were recovered, and the young men's family and clan were fined some more livestock, a percentage of what was stolen. All the recovered livestock were returned to the Toposa community. These are some of the initiatives that have brought calm in the Nadapal area (Akai O.I 2021). The above narration by Akai during an interview shows clearly, that women's role in resolving conflict was essential and even the elders recognized this fact.

Conclusion

The examination on the indigenous mechanism of inter-ethnic conflict management and resolution prior to colonialism demonstrated the utility of the Pokot and Turkana indigenous methods of conflict resolution and management that were present in society. The study found that conflict was manifested at the family, neighborhood, clan, and inter-ethnic levels. Elders and disputant parties used conflict resolution and management strategies. Indigenous conflict resolution and management institutions were local and led by well-accepted and respectful individuals to govern disputes and behaviours that induced conflict in society. The conflict resolution and management mechanism drove legitimacy and consensus from the community.

The indigenous conflict resolution and management processes were well structured and geared towards reconciliation, maintaining, and improving social relationships. The methods, processes, and regulations were deeply rooted in the customs as well as traditions of the people. The usefulness and necessity of indigenous conflict resolution and management strategies lie in the fact that they strived to restore a balance, settle the conflict, and eliminate disputes; for better socio-political stability and economic growth. The vital role of such indigenous institutions was to mediate and resolve different types of conflicts, thereby providing strong social security and safety in society. These mechanisms had a significant degree of success in maintaining order and ensuring the peaceful coexistence of groups.

Recommendations

Based on the conclusion drawn, the study recommends the adoption of an alternative conflict resolution mechanism that integrates indigenous methods and modern strategies. The government should also enhance security capacity and apprehend and prosecute those involved in insecurity. Increasing police presence, including mobile police units and resourcing them

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adequately will minimize conflict. The police units should be integrated into peacebuilding structures rather than used for brutal and forceful community disarmament. The security agents should be trained to understand the local context and concerns and use approaches that enhance community relationships. There is a need to strengthen surveillance and intelligence-gathering capacity by trained county officials in conflict early warning and the use of intelligence. There is also a need to continue community-led disarmament of small arms and light weapons. The use of technologies for tracking livestock and weapons, where appropriate, should be developed.

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